IN THE DISTRICT COURT HELD AT ABURI, EASTERN REGION ON WEDNESDAY THE 28TH DAY OF MAY, 2025 BEFORE HER WORSHIP BIANCA GYAMERA-BEEKO

COURT CASE NO: ER/AB/DC/A2/20/25

KOFI ASAMOAH

VRS

AKILU

JUDGMENT

On 10th January, 2025, the Plaintiff in this matter filed a writ seeking the following reliefs against the Defendant:

1. Recovery of GHS12,000 being cost of repairs to his car with registration mark ER A24-16 which the Defendant has damaged and abandoned at a mechanic's shop.
2. Cost.

The facts are as follows. The Plaintiff is an ex-serviceman who resides at Gyankama. The Defendant is a driver and resides at Konkonuru. On 29th September, 2024, the Defendant approached the Plaintiff and asked him to give him his taxi cab with registration mark ER A24-16 to work with. He was accompanied by one Mr Kofi Amankwah. It was agreed that the Defendant would pay the Plaintiff GHS90 a day as sales and also, the Defendant would park the car each night by 7.30 pm. On these terms, the Plaintiff gave the vehicle to the Defendant. On 5th December, 2024 at about 8pm, the Plaintiff received a call from the Defendant's wife that Defendant had been involved in an accident on the Konkonuru-Papaye road. The Plaintiff went to the scene but saw no one there. The vehicle was however

still there. The bumper and other parts of the car were damaged. Plaintiff later heard that at the driver had been admitted at the hospital but when he went there to visit him, he was not there. The following day, the Defendant tolled the car to the mechanic's shop and abandoned it. Even though the Plaintiff has demanded that the Defendant repair the vehicle, and the Defendant agreed to do so initially, to date he has not done so.

Even though the Defendant was served, he did not appear in court to defend the suit.

Issue

1. Whether the Defendant breached the terms of the contract he had with the Plaintiff regarding the use of the vehicle.
2. Whether the Defendant is liable for the cost of repairing the vehicle.

The principle is that he who alleges must prove. Section 14 of the Evidence Act, 1975 (Act 323) provides that:

> ***except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting***.

The Supreme Court in the oft cited case of **Serwah v Kesse (1960) GLR 227** stated that "***the general rule, of course, is that that the onus probandi lies on the party who substantially asserts the affirmative of the issue***". They laid down the tests for who bears the burden as follows:

"***The best tests for ascertaining on whom the burthen of proof lies are, to consider first which party would succeed if no evidence were given on either side; and, secondly, what would be the effect of striking out of the record the allegation to be proved. The onus lies on whichever party would fail, if either of these steps were pursued See Taylor on Evidence, s.365 quoted in Stroud, Judicial Dictionary (3rd. ed.) p. 1996."***

The Plaintiff is therefore under an obligation to prove the facts that will enable the court conclude that he is entitled to the reliefs he seeks. This being a civil matter, the Plaintiff is required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act 1975 (NRCD 323).

The Plaintiff's case is that he had an oral agreement with the Defendant for the use of his vehicle as a taxi. I take judicial notice of the fact that it is common practice for such arrangements to be governed by oral contracts. Fortunately for the Plaintiff, an oral contract is still binding and enforceable in this jurisdiction; see section 11 of the Contracts Act, 1960 (Act 25).

One of the terms of this oral contract was that the Defendant would park the vehicle at 7.30pm each day. The Plaintiff's witness, Kofi Amankwah, who was present when the parties were negotiating the terms of the agreement corroborated this. I am therefore satisfied that the parties agreed as a term of their oral contract that the Defendant would park the vehicle at 7.30pm each day.

The evidence before this court is that the vehicle got damaged in an accident on the Konkonuru-Papaye road on 5th December, 2024 at about 8.30pm. This means that the Defendant had been driving the vehicle after 7.30pm contrary to the terms agreed. I therefore agree with the Plaintiff that the Defendant is liable for the damage caused to the vehicle through the accident as the car should have been parked at that time.

On the issue of whether the Defendant is liable to pay GHS12,000, the Plaintiff has failed to adduce sufficient evidence to justify such an order being made by this court. The Plaintiff's assertion that it would cost GH12,000 to fix the damaged vehicle without as much as an invoice or witness to corroborate this testimony is woefully inadequate; see the case of **Majolagbe v Larbi [1959] GLR 190.** For this reason, I am unable to order that the Defendant pay the Plaintiff GHS12,000 as cost of repairs to the vehicle.

The Plaintiff is however entitled to general damages for the breach of the oral contract between himself and the Defendant. In the case of **Amoah and Another vrs Enyan and Another [2022] GHAHC 32 (28 November 2022)**, Justice Lodoh quoted the law on the award of general damages as stated in the case of **Delmas Agency Ghana Ltd vrs Food Distributors International Ltd [2007/2008] SCGLR 748** at page 760 as follows:

> *'General damages is such as the law will presume to be the probable or natural consequences of the defendant's act. It arises by inference of law and therefore need not be proved by evidence. The law implies general damages in every infringement of an absolute right. The*

catch is that only general damages are awarded. Where a plaintiff has suffered a properly quantifiable loss, he must plead specifically his loss and prove it strictly. If he does not, he is not entitled to anything unless general damages are also appropriate.'

I therefore award the Plaintiff general damages of GHS 12,000 for the breach of contract.

I order also that the Defendant pays GHS500 to the Plaintiff as cost.

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H/W BIANCA GYAMERA-BEEKO